IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

FRIDAY, THE TWENTY THIRD DAY OF OCTOBER
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE K. LAKSHMAN
AND
THE HONOURABLE SRI JUSTICE G.M. MOHIUDDIN

WRIT PETITION NO: 36054 OF 2026

Between:

Barka Deepa, D/o, Barka Krishna, Aged about 20 years, Occ: Student, R/o, 11-7, Naredlaguda, Shabad, K.V. Rangareddy, Telangana-509217.

...PETITIONER

AND

1. The State of Telangana, represented by its Principal Secretary, Medical and Health Family Welfare Department, Secretariat Buildings, Hyderabad.
2. Kaloji Nararayana Rao University of Health Sciences, Rep by its Registrar, Warangal.
3. Prathima Institute Of Medical Science(PRTM), Rep by Its Principal/Chairman, Off at PIMS Campus, Nagunur, Karimnagar, Telangana, 505417.

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue a Writ, Order or Direction more particularly one in the nature of 'Writ of Mandamus by declaring the action of the Respondent No. 2 in not considering the Petitioner to participate in the Ongoing or Next round of Counseling for admission into MBBS/BDS Degree/Diploma courses for the academic year 2026-27 under C (NRI) Category Management Quota, and, as illegal, arbitrary, unconstitutional and consequently direct the Respondent No. 2 to allow the petitioner to report in 3RD Respondent College 'Prathima Institute Of Medical Science' (PRTM) at Karimnagar or other college in the ongoing or Next round of counseling for admission into MBBS/BDS Degree/Diploma courses under C (NRI)Category Management Quota, for the academic year 2026-27.

I.A. NO: 1 OF 2026

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the Respondent No.2 to consider and allow the petitioner to report in Prathima Institute Of Medical Science(PRTM) at Karimnagar, or other college in Next round of counseling for admission into MBBS/BDS Degree/Diploma courses under C (NRI) Category Management Quota, for the academic year 2026-27 pending disposal of the main Writ Petition.

Counsel for the Petitioner: SRI ABDUL KABEER

Counsel for the Respondent No.1: GP FOR MEDICAL, HEALTH & FW

Counsel for the Respondent No.2: SRI T. SHARATH, SC FOR KNRUHS

Counsel for the Respondent No.3: - - - -

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT: HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN

AND

THE HON'BLE SRI JUSTICE G.M. MOHIUDDIN

WRIT PETITION No.36054 OF 2026
(CNR No.HBHC010740132026)

Date: 23.10.2026

Between:

Barka Deepa

.. Petitioner

Vs

The State of Telangana and others

.. Respondents

ORDER: *(per Hon'ble Sri Justice K. Lakshman)*

Heard Sri Abdul Kabeer, learned counsel for the petitioner, Sri R.Nagarjuna Reddy, learned Government Pleader for Medical Education appearing for respondent No.1-State and Sri T.Sharath, learned Standing Counsel for Kaloji Narayana Rao University of Health Sciences appearing for respondent No.2.

2. The petitioner filed the instant writ petition with the following prayer:

> "...*to issue a Writ Order or Direction more particularly one in the nature of Writ of Mandamus by declaring the action of the respondent No.2 in not considering the petitioner to participate in the Ongoing or Next round of Counseling for admission into MBBS/BDS Degree/Diploma courses for the academic year 2026-27 under C (NRI) Category Management Quota and as illegal, arbitrary, unconstitutional and consequently direct the respondent No.2 to allow the petitioner to report in 3rd respondent College "Prathima Institute Of Medical Science" (PRTM) at Karimnagar or other college in the ongoing or Next round of counseling for admission into MBBS/BDS Degree/Diploma courses under C (NRI) Category Management Quota for the academic year 2026-27 and may pass..*"

3. It is the specific contention of the petitioner herein that the petitioner is a student, seeking to pursue her MBBS/BDS Degree Course in the State of Telangana. Pursuant to the notification dated 12.08.2026 issued by respondent No.2 for admission into the MBBS/BDS Degree course for the academic year 2026-27, she has applied under the NRI Quota. On 15.09.2026, respondent No.2 has issued a provisional allotment order allotting the petitioner to respondent No.3 – Institution. She had to pay an amount of Rs.25,00,000/- towards the 1st year tuition fee to respondent No.3 – Institution. She paid an amount of Rs.2,00,000/- on 15.09.2026 to

respondent No.2 – University towards the allotment fee. On receipt of the same, respondent No.2 had issued Provisional Allotment Order – Phase – P1, dated 15.09.2026. As per the said provisional allotment order, the petitioner has to submit all the original certificates and pay the necessary fees to respondent No.3 on or before 19.09.2026 by 6:00 p.m. Due to financial constraints, she has not paid tuition fee to respondent No.3 pursuant to the said provisional allotment order. Thus, she did not report with the respondent No.3 – Institution.

4. It is further contended by the petitioner that her father has arranged the fee and that she is ready to pay the same to respondent No.3 – Institution. But respondent No.3 is not permitting the petitioner to join the said institution on the ground that the petitioner has not paid the aforesaid fee within the timeline prescribed in the provisional allotment order dated 15.09.2026.

5. Sri T.Sharath, learned Standing Counsel appearing for respondent No.2, on instructions would submit that respondent No.2 has allotted the said seat to another deserving candidate based on merit and as per the regulations of respondent No.2 – University.

However, the stray vacancy counselling is yet to be notified. If a stray vacancy is available, there is a possibility of respondent No.2 considering the request to be made by the petitioner.

6. In the light of the same, this writ petition is disposed of granting liberty to the petitioner to submit a fresh representation to respondent No.2, narrating the aforesaid facts with a request to permit her to participate in the stray vacancy counseling, to be notified. On receipt of such representation, respondent No.2 shall consider and dispose of the same strictly in accordance with the procedure laid down under the regulations. There shall be no order as to costs.

As a sequel thereto, miscellaneous petitions, if any, pending in the petition, shall stand closed.

SD/- P. PRAMOD NAIK
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Principal Secretary, Medical and Health Family Welfare Department, The State of Telangana, Secretariat Buildings, Hyderabad.
2. The Registrar, Kaloji Nararayana Rao University of Health Sciences, Warangal.
3. The Principal/Chairman, Prathima Institute Of Medical Science(PRTM), Off at PIMS Campus, Nagunur, Karimnagar, Telangana, 505417.
4. One CC to SRI ABDUL KABEER, Advocate [OPUC]
5. One CC to SRI T. SHARATH, SC FOR KNRUHS [OPUC]
6. Two CCs to GP FOR MEDICAL, HEALTH & FW, High Court for the State of Telangana, at Hyderabad [OUT]
7. Two CD Copies

BN

HIGH COURT

DATED: 23/10/2026



ORDER

WP.No.36054 of 2026

DISPOSING OF THE WRIT PETITION WITHOUT COSTS

23/10/26